



CHAPTER clii.

An Act to confirm a Provisional Order of the Local Government Board relating to Droitwich. A.D. 1911.

[18th August 1911.]

WHEREAS the Local Government Board have made the Provisional Order set forth in the schedule hereto under the provisions of the Gas and Water Works Facilities Act 1870 the Gas and Water Works Facilities Act 1870 Amendment Act 1873 and the Public Health Act 1875:

33 & 34 Vict.
c. 70.
36 & 37 Vict.
c. 89.
38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force.

Order in
schedule
confirmed.

2. This Act may be cited as the Local Government Board's Provisional Order Confirmation (Gas) (No. 2) Act 1911.

Short title.

A.D. 1911.

SCHEDULE.

BOROUGH OF DROITWICH.

*Droitwich
(Gas) Order.*

*Provisional Order under the Gas and Water Works Facilities
Act 1870 and the Gas and Water Works Facilities
Act 1870 Amendment Act 1873.*

To the Mayor Aldermen and Burgesses of the Borough of
Droitwich; —

And to all others whom it may concern.

WHEREAS the Borough of Droitwich (herein-after referred to as
“the Borough”) is an Urban District of which the Mayor Aldermen
and Burgesses of the Borough acting by the Council (herein-after
referred to as “the Corporation”) are the Urban District Council;

41 Vict.
c. lvii.

And whereas by the Droitwich Gas Order 1878 (herein-after referred
to as “the Order of 1878”) which was confirmed by the Local Govern-
ment Board's (Gas) Provisional Orders Confirmation (Droitwich &c.) Act
1878 the Corporation were empowered on the land described in the
schedule to the Order of 1878 to maintain continue and from time
to time construct erect alter enlarge repair renew or when necessary
remove buildings apparatus and works for the manufacture and storage
of gas and of coke and other refuse or residual products arising from
the manufacture of gas and any matters producible therefrom;

And whereas by the Order of 1878 the Corporation were also
empowered to make supply and sell gas within the Borough and to
convert or manufacture coke and all refuse or residual products arising
from the manufacture of gas and any matters producible therefrom
and to sell and dispose of the same at their works and elsewhere
but were prohibited from manufacturing gas or any residual products
arising in the manufacture of gas on any land other than that specified
in the said schedule and from the storing of gas on any land (other
than the land specified in the said schedule) which should be situated
within three hundred yards from any dwelling-house existing at the
time when they might propose to store gas thereon without the consent
in writing of the owner lessee and occupier of such dwelling-house;

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. clii.]
Provisional Order Confirmation (Gas) (No. 2) Act, 1911.

And whereas by the Droitwich Gas Order 1886 (herein-after referred to as "the Order of 1886") and the Droitwich Gas Order 1897 (herein-after referred to as "the Order of 1897") which were respectively confirmed by the Local Government Board's Provisional Orders Confirmation (Gas) Act 1886 and the Local Government Board's Provisional Order Confirmation (Gas) Act 1897 it was provided that the lands described in the schedules to those Orders respectively when acquired by the Corporation should be deemed and taken to be lands included in the schedule to the Order of 1878 and by the Order of 1886 the Corporation were empowered to borrow money for the purposes of the Order of 1878 and the Order of 1886;

A.D. 1911.
Droitwich
(Gas) Order.
 50 Vict. c. v.
 60 & 61 Vict.
 c. lxxvi.

And whereas the Corporation require to extend their gasworks and for that purpose to be authorised to purchase additional lands and borrow further moneys and in pursuance of Section 161 of the Public Health Act 1875 and of the enactments therein mentioned have made application to the Local Government Board for a Provisional Order to amend or vary the Droitwich Gas Orders 1878 to 1897;

And whereas it is expedient that the Droitwich Gas Orders 1878 to 1897 should be amended and varied in manner herein-after appearing:

Now therefore We the Local Government Board in pursuance of the powers given to Us by the Gas and Water Works Facilities Act 1870 Section 12 of the Gas and Water Works Facilities Act 1870 Amendment Act 1873 and Section 161 of the Public Health Act 1875 and by any other enactments in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Droitwich Gas Orders 1878 to 1897 shall be amended and varied so that the following provisions shall take effect:—

33 & 34 Vict.
 c. 70.
 36 & 37 Vict.
 c. 89.
 38 & 39 Vict.
 c. 55.

Art. I. This Order may be cited as the Droitwich Gas Order 1911 and the Droitwich Gas Orders 1878 to 1897 and this Order may be cited together as the Droitwich Gas Orders 1878 to 1911.

Short titles.

Art. II. Notwithstanding anything in the Droitwich Gas Orders 1878 to 1897—

Further
 lands for gas
 purposes.

(1) The Corporation may for the purposes of their gas undertaking purchase by agreement but not otherwise the lands described in the schedule to this Order and may also purchase by agreement and subject to the provisions of this Order any lands not exceeding three acres in addition to the lands described in the said schedule:

(2) The Corporation may hold and use the lands described in the schedule to this Order if and when acquired by them for all or any of the purposes of the said gas undertaking including the manufacture and storage of gas and residual

[Ch. clii.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Order Confirmation (Gas) (No. 2) Act, 1911.

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products and those lands when acquired shall be deemed and taken to be lands included in the schedule to the Order of 1878 :

- (3) The Corporation shall not manufacture gas nor manufacture convert or prepare any residual products on any lands other than the lands described in the schedule to the Order of 1878 in the schedule to the Order of 1886 in the schedule to the Order of 1897 or in the schedule to this Order :
- (4) The Corporation shall not begin to store gas or any residual products on any lands other than the lands described in the schedule to the Order of 1878 in the schedule to the Order of 1886 in the schedule to the Order of 1897 or in the schedule to this Order which shall be situated within three hundred yards of any dwelling-house without the previous consent in writing of the owner lessee and occupier of that dwelling-house.

Authorising
Corporation
to require an
antifluctua-
tor to be used
for control-
ling supply of
gas to a gas
engine.

Art. III.—(1) The Corporation may by notice in writing require a consumer of gas supplied by the Corporation and used for the working of an engine to fix and use an antifluctuator in a suitable position upon the premises to which the gas is supplied and whereon the engine is in use or to keep an antifluctuator so fixed and used in proper order and repair at all times while in use or to repair renew or replace an antifluctuator which is not in proper order or repair :

If the consumer after any such notice as aforesaid fails to fix and use an antifluctuator or to keep an antifluctuator in proper order and repair or to repair renew or replace an antifluctuator which is not in proper order and repair the Corporation may cease to supply him with gas.

(2) The Corporation may at all reasonable times demand and shall thereupon have access to any antifluctuator fixed upon any premises to which gas is supplied by the Corporation and for the purpose of ascertaining whether the antifluctuator is in proper order or repair may take off remove test and inspect the antifluctuator.

(3) For the purposes of this Article an "antifluctuator" means any apparatus article or thing for the purpose of controlling and regulating the supply of gas to any engine and preventing any inconvenience or danger from the intermittent consumption of gas by the engine.

Quality of
gas supplied
by Corpora-
tion.

Art. IV.—(1) Articles 8 9 and 12 of the Order of 1878 shall be revoked.

(2) The quality of the gas supplied by the Corporation shall with respect to its illuminating power be such as to produce at the testing

place herein-after mentioned when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall in all respects be in accordance with the provisions of the Gasworks Clauses Act 1871. A.D. 1911.
Droitwich
(Gas) Order.

(3) The Corporation shall maintain or provide and thereafter maintain on the lands described in the schedule to the Order of 1878 the schedule to the Order of 1886 the schedule to the Order of 1897 or the schedule to this Order the bar photometer or the table photometer and other necessary appliances for testing the quality of the gas. The standard light shall be that supplied by Harcourt's ten candle Pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light. Photometer to be provided.

(4) For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place shall be the testing place provided by the Corporation as aforesaid and the burner to be used for testing the gas shall be the Metropolitan Argand No. 2 with a six-inch by one-and-three-quarter-inch glass chimney and if at any time the gas flame tails over the top of the glass a six-inch by two-inch chimney shall be used. Testing place and burner.

(5) The Board of Trade may on the application of the Corporation or any five consumers approve the use of any other burner photometer or standard light that may appear to that Board to be equally or more suitable for the testing.

(6) Any gas examiner appointed under the Gasworks Clauses Act 1871 for the purposes of this Order may from time to time subject to the terms of his appointment at the said testing place or elsewhere not being the immediate approach to any railway bridge or railway station as and when he thinks fit test the pressure at which the gas is supplied and for that purpose may open any street road passage or place vested in or under the control of any local or road authority and two hours' previous notice shall be given to the Corporation of the time and place at which any testing for pressure elsewhere than at the testing place will be conducted.

Art. V.—(1) At least twenty-four hours' notice in writing shall be given to the Corporation by every gas consumer before he shall quit any premises supplied with gas by meter by the Corporation and in default of such notice the consumer so quitting shall be liable to pay to the Corporation the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter Gas consumers to give notice to Corporation before removing.

[Ch. clii.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Order Confirmation (Gas) (No. 2) Act, 1911.

A.D. 1911. on such premises or the date from which any subsequent occupier of such premises shall require the Corporation to supply gas to such premises whichever shall first occur.

Droitwich
(Gas) Order.

(2) Notice of the effect of this Article shall be endorsed on every demand note for gas rent.

Notice of dis-
continuanee.

Art. VI. A notice to the Corporation from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the gas office for the time being of the Corporation.

Power to
refuse to
supply per-
sons in debt
for other
premises.

Art. VII. If a person requiring a supply of gas from the Corporation has previously quitted premises at which gas was supplied to him by the Corporation without paying to them all gas charges and meter rent due from him to the Corporation they may refuse to furnish to him a supply of gas until he pays the same.

Period of
error in
defective
meters.

Art. VIII.—(1) In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter.

(2) The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Corporation shall be paid by or to the Corporation to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Corporation.

Application
of Order of
1886 to
borrowing
powers.

Art. IX. The purposes of this Order (which purposes shall be deemed to include the costs payable by the Corporation of and in connection with the preparation making and confirmation by Parliament of this Order the sum to be paid for the purchase of the lands described in the schedule to this Order and any other lands purchased by the Corporation in pursuance of this Order) shall be deemed to be purposes of the Order of 1878 and the Order of 1886 for which the Corporation may borrow money under and in accordance with the provisions of the Order of 1886 as amended by this Order.

Substituting
Borough
Fund and
Rate for Dis-
trict Fund
and General
District Rate.

Art. X. Wherever in the Order of 1878 and the Order of 1886 the words "District Fund" or "General District Rate" occur there shall be substituted a reference to the "Borough Fund" or "Borough Rate" as the case may be.

The SCHEDULE above referred to.

A.D. 1911

Droitwich
(Gas) Order

A piece of land situate in the parish of Saint Nicholas in the Borough of Droitwich belonging or reputed to belong to the Droitwich Salt Company Limited containing 950 square yards or thereabouts and adjoining the existing gasworks of the Corporation on the easterly side thereof which said piece of land is bounded on the north by the Droitwich Canal on the west partly by the said existing gasworks and partly by cottages and lands belonging or reputed to belong to Messrs. Giles and Boucher and in the respective occupations of Harry Harris Walter Harrison and William Owen on the south by Friar Street and on the east by lands belonging or reputed to belong to and being in the occupation of the trustees of the late Doctor Thomas Corbett.

Given under the Seal of Office of the Local Government Board
this Thirteenth day of April One thousand nine hundred and
eleven.

(I.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

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